

File No.: EXP202303133

RESOLUTION OF RIGHTS PROCEDURE

After carrying out the procedural actions provided for in Title VIII of Organic Law 3/2018, of December 5, on the Protection of Personal Data and Guarantee of Digital Rights (hereinafter LOPDGDD), the following FACTS have been established:

FIRST: Ms. A.A.A. (hereinafter, the claimant), on January 27, 2023, in the context of a labor dispute, sent an email to ***EMAIL.1 and ***EMAIL.2 indicating that the day before, "(...) events had occurred that could be constitutive of a crime and that have been reported to the Court of Instruction No. ***COURT.2" by the claimant, an employee of CLÍNICA DENTAL BENALÚA, S.L., with CIF B53499547, and requesting "(...) that the images captured by the video surveillance system of the company CLINICA DENTAL BENALUA, SL from 09:30 to 11:00 on January 26, 2023, be preserved and made available to the aforementioned Courts."

On February 1, 2023, the claimant sent an electronic burofax to CLÍNICA DENTAL BENALÚA, S.L. "(...) requesting the preservation of images from all video surveillance cameras on January 26, 2023, from 09:30 to 11:00, for submission to the judicial proceedings in the Social Court No. ***COURT.1 and the Court of Instruction No. ***COURT.2. All this based on the provisions of Article 22.3 LOPDGDD.

This request was reiterated on January 30, 2023, during the trial hearing at the Social Court No. ***COURT.1. And again on January 31, 2023, at the Court of Instruction ***COURT.2. Both requests were made verbally to the social administrator, and were recorded in the recordings of the hearing in which it was stated that these recordings had been preserved and access to them would be facilitated. By means of this, and in accordance with the provisions of Article 13 of the LOPDGDD, I request access to the recordings, by sending them to the email address (...)"

On February 8, 2023, the claimant sent another burofax to CLÍNICA DENTAL BENALÚA, S.L. indicating that she had sent burofaxes on February 1 and 2 and 2 emails without receiving a response, reminding them that she had designated her lawyer's email for notification purposes. In this burofax, she requests:

- The cancellation of her data corresponding to her phone number and email address that the company had in its possession in accordance with Article 15 of the LOPDGDD.
- That access be granted to the images from the video surveillance cameras on January 26, 2023, between 09:30 and 11:30.
- That, in accordance with Article 22.3 of the LOPDGDD, a complete copy of the images from the video surveillance system on January 26, 2023, between 09:30 and 11:30, be sent to the Social Court No. ***COURT.1, for the proceedings pending trial between the parties."

SECOND: On February 13, 2023, a complaint was received at this Agency filed by the claimant against CLÍNICA DENTAL BENALÚA, S.L. for not having duly attended to her rights of access, limitation, and deletion of her personal data, stating that she had not received a response to her requests.

Various documents were submitted.

THIRD: In accordance with Article 65.4 of Organic Law 3/2018, of December 5, on the Protection of Personal Data and Guarantee of Digital Rights (hereinafter LOPDGDD), this complaint was forwarded to CLÍNICA DENTAL BENALÚA ALICANTE, S.L., with CIF B42544791, for analysis and to inform this Agency within one month of the actions taken to comply with the requirements set forth in data protection regulations.

The electronic notification via the Notific@ system for this transfer expired, so it was sent again by postal mail, being received on April 24, 2023.

The Data Protection Officer stated that

"The right of access to the entity's video surveillance system was processed by Clínica Dental Benalúa, S.L., through the designated DPO, within the time and form in response to the burofax sent

by XXXX on February 1, 2023 (in accordance with Regulation (EU) 2016/679 Articles 15 to 21), being proven by a technical report from the company responsible for maintaining the cameras, that the requested images were not available due to the video surveillance system being malfunctioning at the time the request was made, and the affected party's right was attended to via the email provided for this purpose.

(Attached are the burofax request, technical report of the malfunction and subsequent repair, access rights form, email sent, acknowledgment of receipt, and acknowledgment of reading)."

FOURTH: Regarding the response received at this Agency, it was considered that there were certain aspects that needed clarification. For this reason, a new letter was sent to Clínica Dental Benalúa Alicante in which, within five working days from the notification of this request, they should supplement the documentation initially submitted by providing proof of the response regarding the exercise of the claimant's right to data deletion.

The electronic notification via the Notific@ system for this transfer expired.

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FIFTH: The outcome of the transfer procedure indicated in the previous Fact did not allow for the understanding that the claims of the complaining party were satisfied. Consequently, on May 8, 2023, for the purposes provided in Article 64.1 of the LOPDGDD, the Director of the Spanish Agency for Data Protection agreed to admit the complaint filed.

The aforementioned agreement granted CLÍNICA DENTAL BENALÚA ALICANTE, S.L. a hearing procedure, so that within ten working days it could present the arguments it deemed appropriate, stating:

"That CLÍNICA DENTAL BENALÚA ALICANTE, S.L. with CIF B42544791, does not have in its files either 'Administrative Management (Employees)' or as 'Patients' any data, not even identifying (name, surname, ID, email, and phone number of the complainant).

In order to collaborate with this Agency; clarify that there is another entity, under a different CIF, with a similar name 'Clínica Dental Benalúa, S.L.' to which the complainant may be referring. (...)"

LEGAL GROUNDS

I

Competence

In accordance with the powers granted to each supervisory authority by Article 58.2 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and as established in Articles 47, 48.1, and 64.1 of the LOPDGDD, the Director of the Spanish Agency for Data Protection is competent to initiate and resolve this procedure.

Furthermore, Article 63.2 of the LOPDGDD states: "The procedures processed by the Spanish Agency for Data Protection shall be governed by the provisions of Regulation (EU) 2016/679, by this organic law, by the regulatory provisions issued for its development and, in so far as they do not contradict them, subsidiarily by the general rules on administrative procedures."

II

Preliminary Issues

In accordance with the provisions of Article 55 of the GDPR, the Spanish Agency for Data Protection is competent to perform the functions assigned to it in Article 57, including the enforcement of the Regulation and promoting awareness among data controllers and processors about their obligations, as well as addressing complaints filed by an interested party and investigating, as appropriate, the reasons for them.

Correspondingly, Article 31 of the GDPR establishes the obligation of data controllers and processors to cooperate with the supervisory authority that requests it in the performance of its functions. In cases where they have appointed a data protection officer, Article 39 of the GDPR assigns this officer the function of cooperating with that authority.

In accordance with this regulation, following the procedure provided in Article 65.4 of the LOPDGDD, prior to the admission of the complaint regarding the exercise of the rights regulated in Articles 15 to 22 of the GDPR, which gives rise to this procedure, the complaint was forwarded to the respondent party for analysis, to respond to this Agency within one month, and to prove that it had provided the complainant with the due response.

The outcome of that transfer did not allow for the understanding that the claims of the complaining party were satisfied. Consequently, on May 8, 2023, for the purposes provided in Articles 64.1 and 65 of the LOPDGDD, the complaint filed was admitted for processing. This admission for processing determines the opening of the present procedure for failure to attend to a request for the exercise of the rights established in Articles 15 to 22 of the GDPR, regulated in Article 64.1 of the LOPDGDD, according to which:

"When the procedure refers exclusively to the failure to attend to a request for the exercise of the rights established in Articles 15 to 22 of Regulation (EU) 2016/679 of the European Parliament and of the Council, of April 27, 2016, it shall be initiated by an admission agreement, which shall be adopted in accordance with the provisions of Article 65 of this organic law.

In this case, the deadline for resolving the procedure shall be six months from the date on which the admission agreement was notified to the complainant. After this period, the interested party may consider their complaint accepted."

Article 58.2 of the GDPR grants the Spanish Agency for Data Protection a series of corrective powers to correct any infringement of the GDPR, including "ordering the controller or processor to attend to the requests for the exercise of the rights of the interested party under this Regulation."

III

Conclusion

In this case, from the examination of the documentation provided by the parties, it has been established that the complaining party exercised their rights before Clínica Dental Benalúa, S.L. with CIF B53499547 and that, by mistake, this Agency has processed the file against Clínica Dental Benalúa Alicante, S.L. with CIF B42544791.

Therefore, it is appropriate to archive this procedure.

In view of the cited provisions and others of general application, the Director of the Spanish Agency for Data Protection RESOLVES:

FIRST: TO ARCHIVE the complaint filed by Ms. A.A.A.

SECOND: TO NOTIFY this resolution to Ms. A.A.A. and to CLÍNICA DENTAL BENALÚA ALICANTE, S.L.

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In accordance with the provisions established in Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative procedure in accordance with Article 48.6 of the LOPDGDD, and in accordance with the provisions established in Article 123 of the LPACAP, the interested parties may optionally file a motion for reconsideration before the Director of the Spanish Agency for Data Protection within one month from the day following the notification of this resolution or directly file a contentious-administrative appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and Section 5 of the fourth additional provision of Law 29/1998, of July 13, regulating the Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law.

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Mar España Martí

Director of the Spanish Agency for Data Protection

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